

Our proposed House of Lords amendment to the **Public Office (Accountability) Bill**

EXPLANATORY STATEMENT

Includes all members of the UK's four legislatures within the duty of candour and the offence of misleading the public. Safeguards freedom of political expression and debate, parliamentary privilege, and honest mistakes, whilst recognising the democratic voice of legislators, Government Ministers and mayors as part of their public functions.

49 words

THIS IS WHERE THE AMENDMENT GOES

Schedule 2, page 53, line 17, at end insert—

EQUAL ACCOUNTABILITY ACROSS UK LEGISLATURES

(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

SAFEGUARDING FREEDOM OF POLITICAL EXPRESSION AND DEBATE

(15) Neither section 5 nor section 12 applies to anything said or done in proceedings of any Parliament or legislative assembly in the United Kingdom. Outside those proceedings, a person does not commit either offence merely by making an honest mistake or expressing an honestly held political belief or opinion. Nothing in this paragraph limits the right to freedom of expression under Article 10 of Schedule 1 to the Human Rights Act 1998.

DEMOCRATIC VOICE AS A PUBLIC FUNCTION

(16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their public functions when communicating with the public, by any means, about matters of significant concern to the public. Such matters include public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business.